

The Motion to Compel Arbitration and Stay Proceedings Pending Arbitration is **GRANTED**. A proposed order has been lodged with the Court and will be executed. The proceedings are hereby stayed. The Court will set this matter on the resolution review calendar for status of arbitration on **Monday, September 8, 2025, at 9:00 a.m. in Department 64**. The parties are ordered to provide a status report to the Court no later than five court days prior to the hearing.

TD BANK USA, N.A. VS. BASSETT

Case Number: 24CVG-00745

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff TD Bank, N.A. seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Laura Bassett by mail on September 13, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$4,988.00 U.S. CURRENCY

Case Number: 22CV-0201191

Tentative Ruling on Order to Show Cause Re Dismissal of Claim: An Order to Show Cause Re: Dismissal ("OSC") issued on February 4, 2024, pursuant to Gov't Code § 68608(b) to Claimant Marissa Duchi for failure to appear on January 27, 2025, as ordered on December 16, 2024. No response to the OSC has been filed. The Court **DISMISSES** Claimant's Claim Opposing Forfeiture for failure to appear. The clerk is instructed to prepare a separate Order Dismissing the Claim Opposing Forfeiture filed December 12, 2022. Today's 9:00 a.m. review hearing is confirmed.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Disclosure of Peace Officer Records: Plaintiff seeks disclosure of Peace Officer records pursuant to Evidence Code sections 1043 and 1045. Defendant City of Redding opposes the Motion.

Penal Code sections 832.5 and 832.7 makes the personnel records of peace officers confidential. Evidence Code section 1043 provides the procedural mechanism by which these personnel records can be obtained for use in civil litigation. The statute requires a noticed motion brought under CCP § 1005 which is served on all parties and the governmental agency that has custody and control of the records. Evid. Code § 1043(a). The motion must identify the litigation for which the records are sought, provide a description of the records and be supported by affidavits establishing good cause for the disclosure. Evid. Code § 1043(b)(1) – (3). The threshold showing of “good cause” is relatively low. *City of Santa Cruz v. Municipal Court* (1989) 49 Cal.3d 74, 83. Good cause exists when the requesting party can demonstrate that the type of information/records sought are material to the subject matter involved in the litigation. *Id.* General allegations that establish some cause for discovery are sufficient. *Id.* at 84-86. Affidavits made on information and belief are acceptable. *Id.* at 86.

Plaintiff seeks an order compelling production of City of Redding Police Records. Specifically, Plaintiff seeks:

“Any and all records, reports, documents, correspondence, punch detail reports, work schedules, W-2s, notes, ledgers, journals, workers compensation records, applications for employment, medical and health records, information regarding raises, promotions, absenteeism, disciplinary actions, layoffs, dismissals, termination, evaluations ... from the first date of employment to the present date ...on the below named persons September Wynhoff and all Officers who were investigated for wrongful acts against her.”

(Motion 3:3-14.)

Plaintiff’s Motion and supporting Declaration of Britanie Crippen argue that the requested records are material because they are directly relevant to the amount of recoverable economic damages in this case, including loss of future income. Plaintiff argues that absent information regarding her earnings history, sexual harassment investigations and complaints and any investigation into her domestic violence incident, the parties’ economists are unable to evaluate the scope of Plaintiff’s economic harm. (Motion 4:20-23; Decl. Crippen ¶¶ 8, 11.)

Plaintiff’s requests for records here is plainly overbroad and unsupported by good cause. Plaintiff seeks records including medical and health records, employment applications, and workers compensation records for unspecified officers from their first date of employment to the present. Plaintiff has not established these records are relevant to the subject matter of this litigation.

Plaintiff’s Reply brief, for the first time, narrows some of the categories of documents requested, and specifies the names of nine officers whose records are sought. (Reply 2: 20-21.) It is improper to identify the individual officers whose records are sought for the first time in a reply brief. The officers were not identified in the moving papers. However, Defendant’s Opposition indicates that this “modification” was presented to them via email prior to their filing of the Opposition, and Defendant did address the issue in their brief. Even if these names had been properly presented in the moving papers, the request is still overbroad. It seeks personnel and employment records from the first date of employment to the present, despite the fact that this action concerns allegations of harassment and wrongful termination during the period of Plaintiff’s employment of less than a year, which was approximately December 2022 – November 2023. No information is provided regarding any of the nine individual officers’ alleged connection to the case. Although the

threshold for establishing good cause for production of peace officer records is relatively low, Plaintiff has not met it here. The Motion is **DENIED** without prejudice. A proposed order has been lodged and will be modified.

9:00 a.m. Review Hearings

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC

Case Number: 24CV-0204149

This matter is on calendar for review regarding status of service. Plaintiff has filed a status report indicating that previously imposed sanctions were paid on March 4, 2025. Proof of service of summons was filed March 6, 2025. This matter is continued to **Monday, May 12, 2025 at 9:00 a.m. in Department 64** for review regarding responsive pleadings and trial setting. Because Defendants have not yet appeared in this action, Plaintiff is required to prepare and serve on Defendants a Notice of Status and Trial Setting Hearing for **Monday, May 12, 2025 at 9:00 a.m. in Department 64** and file a Proof of Service of having done so with the Court. This Notice must be personally served on Defendants unless they file an appearance before this hearing, in which case the Notice may be served by mail in compliance with the Code of Civil Procedure. **No appearance is necessary on today's calendar.**

CHAVEZ VS. CORLESS, ET AL.

Case Number: 24CV-0205160

This matter is on calendar for confirmation of filing the acknowledgement of receipt of order and funds for deposit in blocked account. No acknowledgment has been filed. No status report has been filed. An appearance is necessary on today's calendar to provide a status of the funds.

DOBBINS, ET AL. VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORT

Case Number: CVCV20-0194615

This matter is on calendar for review regarding status of settlement. This matter is also on calendar on today's 8:30 a.m. Law and Motion calendar for further proceedings on Plaintiff's Motion for Preliminary Approval of Class Action Settlement. As noted in the Court's tentative ruling on that Motion, the Court intends to deny the Motion without prejudice. This matter will be set for review regarding status of settlement on **Monday, June 9, 2025, at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

HUMPHREY VS. JAMV, INC

Case Number: 23CV-0202578

This matter is on calendar for review regarding status of mediation. No status statements have been filed. An appearance is necessary on today's calendar to provide a status of mediation.

KEADING VS. GENERAL MOTORS LLC

Case Number: 23CV-0203717

This matter is on calendar for review regarding status of judgment/dismissal. A Notice of Conditional Settlement was filed on September 6, 2024 which indicates that the case would be dismissed no later than January 6, 2025. No dismissal is on file. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.